

HOUSE No. 4657

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 29, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred message from Her Excellency the Governor authorizing the town of Scituate to grant four additional licenses for the sale of all alcoholic beverages to be drunk on the premises (House, No. 4184), reports recommending that the accompanying bill (House, No. 4657) ought to pass.

For the committee,

TACKEY CHAN.

HOUSE No. 4657

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Scituate to issue four additional licenses for the sale of all alcoholic beverages to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Scituate may: (i) convert 1 seasonal license for the sale of all
3 alcoholic beverages to be drunk on the premises under section 12 of said chapter 138, currently
4 issued to Salt Marsh Winery and used at 17 New Driftway to an annual license for the sale of all
5 alcoholic beverages to be drunk on the premises under said section 12 of said chapter 138 to Salt
6 Marsh Winery for use at 17 New Driftway; (ii) convert 1 seasonal license for the sale of all
7 alcoholic beverages to be drunk on the premises under said section 12 of said chapter 138,
8 currently issued to Split Rock Scituate and used at 360 Gannett Road to an annual license for the
9 sale of all alcoholic beverages to be drunk on the premises under said section 12 of said chapter
10 138 to Split Rock Scituate for use at 360 Gannett Road; and (iii) grant two additional licenses for
11 the sale of all alcoholic beverages to be drunk on the premises pursuant to said section 12 of said
12 chapter 138 to establishments located within the 3 economic development zones as described in

subsection (b) upon approval of and under conditions set by the licensing authority of the town of Scituate. The licenses shall be subject to all of chapter 138 except section 17.

(b) The licensing authority of the town of Scituate shall restrict the licenses granted pursuant to clause (iii) of subsection (a) to establishments within:

(1) The Harbor Business District, which for the purposes of this act shall include only the “Business Zone” south of Beaver Dam Road and north of First Parish Road and Edward Foster Road on the map. Licenses shall be clearly marked “Harbor Business District”. For the purposes of this paragraph, “map” shall mean the map entitled “Harbor Business District – Town of Scituate, MA” dated July 1, 2025, prepared by CAI Technologies, a copy of which is on file in the office of the town clerk of the town of Scituate;

(2) The Greenbush Driftway Gateway District, which for the purposes of this act shall include only the areas zoned “New Driftway Transit Village – Mandatory Mixed Use District”, “Gateway Business”, “Greenbush Village Center”, or “North River Residential” on the map. Licenses shall be clearly marked “Greenbush Driftway Gateway District”. For the purposes of this paragraph, “map” shall mean the map entitled “Town of Scituate – MBTA Compliance Greenbush Driftway Gateway Districts” dated December 12, 2023, a copy of which is on file in the office of the town clerk of the town of Scituate; or

(3) The North Scituate Village, which for the purposes of this act shall include only the areas zoned “Mandatory Mixed Use District” or “North Scituate Outer Village” on the map. Licenses shall be clearly marked “North Scituate Village”. For the purposes of this paragraph, “map” shall mean the map entitled “Town of Scituate – North Scituate Zoning” dated December 12, 2023, a copy of which is on file in the office of the town clerk of the town of Scituate.

(c) The licenses granted under this section shall only be exercised in the dining room of a common victualler and such other public rooms or areas as may be deemed reasonable and appropriate by the licensing authority as certified in writing.

(d) (1) The licensing authority of the town of Scituate shall not approve the transfer of a license granted pursuant to clauses (i) or (ii) of subsection (a) to any other location but it may grant a license to a new applicant at the same location if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees, and contributions have been paid.

(2) The licensing authority of the town of Scituate shall not approve the transfer of a license granted pursuant to clause (iii) of subsection (a) to a location outside of the initial zoned area as described in paragraph (1), (2), or (3) of subsection (b), but it may grant the license to a new applicant within such initial zoned area if the applicant files with the local licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(e) (1) If a licensee terminates or fails to renew a license granted under clauses (i) or (ii) of subsection (a), or any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority which may, within 3 years after such return, then grant the license to a new applicant at the same location and under the same conditions as specified in this section, otherwise such license shall dissolve.

57 (2) If a licensee terminates or fails to renew a license granted under clause (iii) of
58 subsection (a) or any such license is cancelled, revoked or no longer in use, it shall be returned
59 physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the
60 licensing authority which may then grant the license to a new applicant in the town's Harbor
61 Business District under the same conditions as specified in this section.

62 (f) All licenses granted under this section shall be issued within 3 years after the effective
63 date of this act; provided, however, that a license originally granted within that time period may
64 be granted to a new applicant under subsections (d) and (e) thereafter.

65 SECTION 2. This act shall take effect upon its passage.